

Government of Karnataka

e-Stamp

Certificate No.	: IN-KA05277279832272T
Certificate Issued Date	: 16-Sep-2021 04:03 PM
Account Reference	: NONACC (FI)/ kacrsfl08/ BANGALORE12/ KA-BA
Unique Doc. Reference	: SUBIN-KAKACRSFL0868257907425222T
Purchased by	: EMBASSY INDUSTRIAL PARKS PVT LTD AND OTHERS
Description of Document	: Article 5(J) Agreement (In any other cases)
Property Description	: LLP AMENDMENT AGREEMENT
Consideration Price (Rs.)	: 0 (Zero)
First Party	: EMBASSY INDUSTRIAL PARKS PVT LTD AND OTHERS
Second Party	: SHAIL AGRO INDUSTRIES PVT LTD
Stamp Duty Paid By	: EMBASSY INDUSTRIAL PARKS PVT LTD AND OTHERS
Stamp Duty Amount(Rs.)	: 1,000 (One Thousand only)



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This Stamp paper forms an integral part of the Amended and Restated LLP Agreement dated 2nd October, 2021, by and amongst Embassy Industrial Parks Pvt Ltd, Shail Agro Industries Pvt Ltd, Bagur Logistics Park Private Limited, Mr. Aditya Virwani and Farukhnagar Logistics Parks LLP.

Statutory Alert:

1. The authenticity of this Stamp certificate should be verified at 'www.shcilestamp.com' or using e-Stamp Mobile App of Stock Holding. Any discrepancy in the details on this Certificate and as available on the website / Mobile App renders it invalid.
2. The onus of checking the legitimacy is on the users of the certificate.
3. In case of any discrepancy please inform the Competent Authority.

AMENDED AND RESTATED LLP AGREEMENT

This Amended and Restated LLP Agreement (the "**Restated LLP Agreement**") has been executed on 8 October 2021 at Bengaluru, Karnataka, India by and amongst:

1. **Embassy Industrial Parks Private Limited**, a company under the Companies Act, 2013, having its registered office at 1st Floor, Embassy Point, 150, Infantry Road, Bangalore 560 001, Karnataka, India and CIN: U60231KA2009PTC050991 (hereinafter referred to as "**Partner-1**", which expression shall, unless it be repugnant to the context or meaning thereof, be deemed to mean and include its successors and permitted assigns) of the **FIRST PART**;

AND

2. **Shail Agro Industries Private Limited**, a company under the Companies Act, 2013 having its registered office at 8082, Pocket A, Sector C, Vasant Kunj, New Delhi 110 070, India (hereinafter referred to as "**Partner-2**", which expression shall, unless it be repugnant to the context or meaning thereof, be deemed to include its successors and permitted assigns) of the **SECOND PART**;

AND

3. **Bagur Logistics Park Private Limited**, a company under the Companies Act, 2013, having its registered office at 1st Floor, Embassy Point, 150, Infantry Road, Bangalore 560 001, Karnataka, India and CIN: U70109KA2018PTC116753 (hereinafter referred to as "**Partner-3**", which expression shall, unless it be repugnant to the context or meaning thereof, be deemed to mean and include its successors and permitted assigns) of the **THIRD PART**;

AND

4. **Mr Aditya Jitendra Virwani**, resident individual aged 27 years, with Permanent Account Number: AEDPV9640L and residing at #332, Embassy Woods, 6/A Cunningham Road, Vasanth Nagar, Bangalore 560 052, Karnataka, India (hereinafter referred to as "**Aditya Virwani**", which expression shall, unless repugnant to the context or meaning thereof include his heirs and permitted assigns) of the **FOURTH PART**;

AND

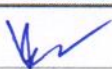
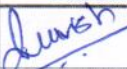
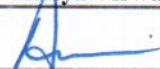
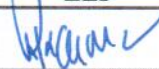
5. **M/s Farukhnagar Logistics Parks LLP**, a limited liability partnership under the Limited Liability Partnership Act, 2008, having its registered office at 1st Floor, Embassy Point, 150 Infantry Road, Bangalore 560 001, Karnataka, India (hereinafter referred to as the "**LLP**", which expression shall, unless it be repugnant to the context or meaning thereof, be deemed to mean and include its successors and permitted assigns) of the **FIFTH PART**.

Partner-1, Partner-2 and Partner-3 are collectively referred to as "**Partners**" and wherever the context may require individually as a "**Partner**".

The Partners and the LLP are collectively referred to as "**Parties**" and wherever the context may require individually as a "**Party**".

WHEREAS:

- A. Partner-1 (by itself and/or its Affiliates and associates) develops and operates industrial parks and warehouses;

Partner 1	Partner 2	Partner 3	Aditya Virwani	LLP
				

- B. The LLP was incorporated on 28 December 2017 by Partner-1 and Aditya Virwani under the Limited Liability Partnership Act, 2008 ("**LLP Act**"). In accordance with Section 23(4) of the LLP Act, Partner-1 and Aditya Virwani executed a Limited Liability Partnership Agreement dated 1 February 2018 ("**Original LLP Agreement**"), constituting the said LLP and *inter-alia* for the governance and operations of the LLP;
- C. The LLP has since acquired ownership on a land parcel measuring ~107.68 acres at Village Farukhnagar, Hadbast No. 35, Tehsil Farukhnagar, District; Gurugram, Haryana and Village: Khalikpur, Hadbast No. 81, Tehsil- Badli, District-Jhajjar, Haryana ("**Project Lands**") from its previous owners. The Project Lands are described in **Schedule-I** (*Description of Project Lands*) hereto;
- D. Partner-2 who is one of the previous owners of the Project Lands, was admitted as a partner to the LLP, pursuant to the terms and conditions of the Admission cum Reconstitution Deed dated 5 March 2018 executed by and amongst Partner-1, Aditya Virwani, Partner-2 and the LLP ("**Admission cum Reconstitution Deed**"). The terms of the Admission cum Reconstitution Deed also superseded the terms of the Original LLP Agreement;
- E. Partner-1, Aditya Virwani and Partner-2 consequently entered into a Supplementary Agreement dated 13 May 2019 ("**Supplementary Agreement**") to amend the provisions regarding the designated partners of the LLP as set out in the Admission cum Reconstitution Deed;
- F. Aditya Virwani has now transferred his Capital / Partnership Interest in the LLP to Partner-3, and the Parties are now desirous of amending the LLP Agreement by way of this Restated LLP Agreement to, (i) admit Partner-3 as a partner to the LLP; (ii) record the resignation of Aditya Virwani as a partner of the LLP and remove references to Aditya Virwani as a partner of the LLP; (iii) to reconstitute the LLP and record several aspects of governance and operation of the LLP; and (iv) to record the inter-se rights of the Partners.

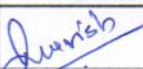
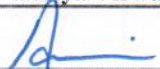
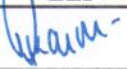
NOW, THEREFORE, in consideration of the mutual covenants and agreements set forth herein, the Parties hereby agree as follows:

1. DEFINITIONS AND CONSTRUCTION

1.1 Definitions

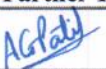
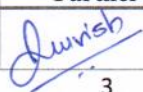
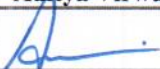
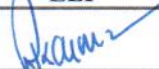
In this Restated LLP Agreement, the following capitalised terms when used shall have the meaning ascribed to them in this clause:

- a. "**Additional Lands**" shall mean and refer to any land parcel adjoining the Project Lands which Partner-1 determines is to be acquired for the LLP to expand the Project;
- b. "**Additional Partner Investment**" shall have the meaning ascribed to the term in clause 5.2 hereof;
- c. "**Affiliate**" in relation to a person, shall mean a person Controlled by, under common Control with or under the Control of such reference person and in relation to a natural person or a partnership shall include all relatives of such natural person and/or a partner of the partnership;
- d. "**Anti-Corruption Laws**" shall mean and include: (a) all anti-corruption laws in India as amended, supplemented or re-enacted, including but not limited to the Prevention of Corruption

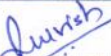
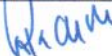
Partner 1	Partner 2	Partner 3	Aditya Virwani	LLP
				

Act 1988 and Prevention of Money Laundering Act 2002; (b) all anti-corruption laws of the United States of America including but not limited to the U.S. Foreign Corrupt Practices Act of 1977; (c) any other applicable anti-corruption or anti-bribery laws applicable to the Parties;

- e. **"Binding VJ Transfer Documents"** shall have the meaning ascribed to it in Clause 8.2;
- f. **"Brand License Agreement"** shall mean any agreement executed between the LLP and Partner-1 and/or any Affiliate of Partner-1 regarding the non-exclusive usage by the LLP of certain trademarks and brands of Partner-1 and/or any of its Affiliates for the limited purpose of the Project in accordance with the terms thereof;
- g. **"Business"** shall have the meaning ascribed to it in Clause 2.1.1;
- h. **"Business Day"** shall mean a day other than Saturday and Sunday on which banks in Bangalore and New Delhi are open for normal banking business;
- i. **"Capital"** shall mean the contributions made by any of the partners to the LLP;
- j. **"Capital Call"** shall have the meaning ascribed to it in Clause 5.2.1;
- k. **"Capital Call Notice"** shall have the meaning ascribed to it in Clause 5.2.1;
- l. **"Capital Confirmation Notice"** shall have the meaning ascribed to it in Clause 5.2.2;
- m. **"Competitor"** shall mean all persons or Affiliates of such persons, who are engaged directly or indirectly, in any form of business similar to that of the Project and/or real estate construction and/or development, whether for sale or lease but shall not include any financial investor;
- n. **"Confidential Information"** shall have the meaning ascribed to it in Clause 10.1;
- o. **"Control"** (together with its correlative meanings, **"Controlled by"** and **"Under common Control with"**) with respect to any Person, shall mean, the possession, directly or indirectly, of the power to direct or cause the direction of the management or policies of such Person, whether through ownership of more than 50% (Fifty percent) of the voting securities or voting interest, or through the power to appoint majority of directors on the board of directors or similar governing body of such Person, by contract or otherwise;
- p. **"Core Business"** shall have the meaning ascribed to it in Clause 2.1.1;
- q. **"Designated Partner"** shall have the meaning given to it in Section 2(1)(j) of the LLP Act;
- r. **"Drag Along Right"** shall have the meaning ascribed to it in Clause 8.5;
- s. **"Drag Capital"** shall have the meaning ascribed to it in Clause 8.5;
- t. **"Drag Notice"** shall have the meaning ascribed to it in Clause 8.5;
- u. **"Due Date"** shall have the meaning ascribed to it in Clause 5.2.2;
- v. **"Fair Market Value"** with respect to any capital and interest in profits and assets of the LLP, shall mean the valuation of such property by a merchant banker/chartered accountant who is

Partner 1	Partner 2	Partner 3	Aditya Virwani	LLP
				

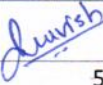
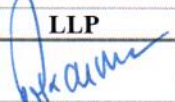
- acceptable to Partner-1 and the LLP, and whose costs shall be borne by the LLP, and which valuation shall be made in accordance with applicable Law;
- w. **"Financial Year"** shall mean the period of twelve months commencing on April 1 of a calendar year and ending on March 31 of the following calendar year, or such other period as required by applicable Law and/or otherwise required by Partner-1;
- x. **"First Party"** shall have the meaning ascribed to it in Clause 11.1;
- y. **"Funding Requirement"** shall have the meaning ascribed to the term in Clause 5.1;
- z. **"Governmental Authority"** shall mean any competent governmental or quasi-governmental authority of any nature, regulatory, statutory or administrative authority, agency, department, commission or instrumentality (whether local, municipal, national or otherwise), court, board or tribunal of competent jurisdiction or other law, rule or regulation making entity having jurisdiction over any of the Parties or the Project Lands or the Project and shall include any stock exchanges on which securities of any of the Parties are/may be listed;
- aa. **"Investment Trust"** shall mean, collectively, REIT and InvIT;
- bb. **"Investment Trust Listing"** shall mean, collectively, the REIT listing and the InvIT listing;
- cc. **"Investment Trust Regulations"** shall mean, collectively, Securities and Exchange Board of India (Real Estate Investment Trusts) Regulations 2014 and Securities and Exchange Board of India (Infrastructure Investment Trusts) Regulations 2014;
- dd. **"InvIT"** shall mean a trust registered as an 'Infrastructure Investment Trust' under the (Indian) Securities and Exchange Board of India (Infrastructure Investment Trusts) Regulations 2014;
- ee. **"Law"** shall mean any common or customary law, constitutional law, any statute, regulation, resolution, rule, ordinance, communiqué, enactment, judgment, order, code, decree, directive, notification, clarification, guideline, policy, requirement or other governmental restriction and any form or decision of or determination by or interpretation of any of the foregoing (whether or not having the force of law) by any Governmental Authority;
- ff. **"LLP Act"** shall mean the Limited Liability Partnership Act, 2008, as amended from time to time and shall include all other rules, notifications and circulars which may be issued in this regard from time to time;
- gg. **"LLP Agreement"** shall mean the Original LLP Agreement, the Admission cum Reconstitution Deed and the Supplementary Agreement, collectively;
- hh. **"Lock-in Period"** shall have the meaning ascribed to it in Clause 8.1;
- ii. **"Material P2 Breach"** shall mean a breach of the obligations under clause 7.3, clause 7.4, clause 7.6, clause 8, 10 and 12.1(b) of this Restated LLP Agreement by Partner-2;
- jj. **"OFAC"** shall have the meaning ascribed to it in Clause 7.7;
- kk. **"Partner-1 Listing"** shall have the meaning ascribed to the term in Clause 8.13;
- ll. **"Partner-1 Transfer Assets"** shall have the meaning ascribed to it in Clause 8.4;

Partner 1	Partner 2	Partner 3	Aditya Virwani	LLP
				

- mm. **"Partner-2 Transferee"** shall have the meaning ascribed to it in Clause 8.2;
- nn. **"Partnership Interest"** shall mean the capital contribution of a partner of the LLP;
- oo. **"Project"** shall mean the development of warehouses on the Project Lands and/or Additional Lands;
- pp. **"REIT"** shall mean a trust registered as a 'Real Estate Investment Trust' under the (Indian) Securities and Exchange Board of India (Real Estate Investment Trusts) Regulations 2014;
- qq. **"Right of First Refusal"** shall have the meaning ascribed to it in Clause 8.2;
- rr. **"ROFR Transferee"** shall have the meaning ascribed to it in Clause 8.3;
- ss. **"Specifically Protected Persons"** shall have the meaning ascribed to it in Clause 7.6;
- tt. **"Tag Along Right"** shall have the meaning ascribed to it in Clause 8.4;
- uu. **"Tag Capital"** shall have the meaning ascribed to it in Clause 8.4;
- vv. **"Tag Exercise Notice"** shall have the meaning ascribed to it in Clause 8.4;
- ww. **"Tag Sale Notice"** shall have the meaning ascribed to it in Clause 8.4;
- xx. **"Taxes"** shall mean any direct or indirect taxes, duties (including stamp duties), excise, charges, fees, levies or other similar assessments by or payable to a Governmental Authority, including in relation to: (a) income, services, gross receipts, premium, immovable property, movable property, assets, profession, entry, capital gains, municipal, interest, expenditure, imports, wealth, gift, sales, use, transfer, licensing, withholding, employment, payroll and franchise taxes; and (b) any interest, fines, penalties, assessments, or additions to Tax resulting from, attributable to or incurred in connection with any proceedings in respect thereof and includes income tax, goods and service tax, etc. payable in India;
- yy. **"Transfer"** shall mean to transfer, sell, assign, create participatory/pass through rights or benefits over, pledge, hypothecate, create a security interest in or lien on, place in trust (voting or otherwise), transfer by operation of law or in any other way subject to any encumbrance or dispose of, any asset or right or privilege, whether or not voluntarily;
- zz. **"Transfer Notice"** shall have the meaning ascribed to it in Clause 8.2;
- aaa. **"Transferor"** shall have the meaning ascribed to it in Clause 8.2;
- bbb. **"Unit(s)"** shall mean the various units developed in the Project; and
- ccc. **"VJ Transfer Assets"** shall have the meaning ascribed to it in Clause 8.2.

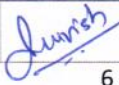
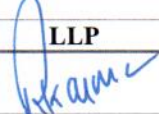
1.2 Interpretation

- (a) Headings are for convenience only and shall not affect the construction or interpretation of any provision of this Restated LLP Agreement;

Partner 1	Partner 2	Partner 3	Aditya Virwani	LLP
				

- (b) Where a word or phrase is defined, other parts of speech and grammatical forms and the cognate variations of that word or phrase shall have corresponding meanings;
- (c) Words importing the singular shall include plural and vice versa;
- (d) Reference to Recitals, Sections, clauses, Schedules and Annexures are to recitals, sections, clauses, schedules and annexures of this Restated LLP Agreement;
- (e) All words (whether gender-specific or gender neutral) shall be deemed to include each of the masculine, feminine and neuter genders;
- (f) The *ejusdem generis* (of the same kind) rule will not apply to the interpretation of this Restated LLP Agreement. Accordingly, include and including will be read without limitation;
- (g) Any reference to a "person" or "Person" includes any individual, firm, corporation, partnership, company, trust, association, joint venture, government (or agency or political subdivision thereof) or other entity of any kind, whether or not having a separate legal personality. A reference to any person in this Restated LLP Agreement shall, where the context permits, include such person's executors, administrators, heirs, legal representatives and successors in interest and permitted assigns;
- (h) A reference to any document (including this Restated LLP Agreement) is to that document as amended, consolidated, supplemented, novated or replaced from time to time;
- (i) A reference to Act, statute or statutory provision includes, to the extent applicable at any relevant time that statute or statutory provision consolidated, modified, re-enacted or replaced by any other statute or statutory provision and any subordinate legislation or regulation made under the relevant statute or statutory provision;
- (j) References to writing include any mode of reproducing words in a legible and non-transitory form;
- (k) Words and abbreviations, which have well known technical or trade/commercial meanings are used in this Restated LLP Agreement in accordance with such meanings;
- (l) The term "lease" wherever used in the context of a dealing with and/or disposal of a Unit includes a license or tenancy or any kind of occupancy right, by whichever term or concept defined;
- (m) Wherever in this Restated LLP Agreement any reference is made to time period for completion, satisfaction or achievement of any condition, covenant or a clause, by the LLP or any of the Parties, then such time shall be deemed to be an essence of the Restated LLP Agreement unless the context requires otherwise;
- (n) The term "action" wherever used and where the context may allow, includes an "omission" and/or a "failure to act"; and
- (o) Reference to an "amendment" includes a supplement, modification, novation, replacement or re-enactment and "amended" is to be construed accordingly.

1.3 Joint Drafting and Negotiation

Partner 1	Partner 2	Partner 3	Aditya Virwani	LLP
				

The Parties have participated jointly in the negotiation and drafting of this Restated LLP Agreement. In the event an ambiguity or question of intent or interpretation arises, this Restated LLP Agreement shall be construed as if drafted jointly by the Parties, and no presumption or burden of proof shall arise favouring or dis-favouring any Party by virtue of the authorship of any of the provisions of this Restated LLP Agreement.

2. BUSINESS

- 2.1.1 The LLP is in the business of: (a) conceptualizing, designing, constructing, developing, selling, leasing, licensing and/or managing warehouses ("**Core Business**"); and (b) providing any services in relation to the Core Business including operating and managing projects, marketing, sales, leasing, licensing, tenant relationships, facilities management, etc ("**Business**").
- 2.1.2 The LLP shall carry on the Business in accordance with the terms of this Agreement.
- 2.1.3 The LLP shall carry on the Business at the registered office or such other additional place(s) of business as determined by the Partners.

3. ADMISSION

Partner-3 has acquired the Capital / Partnership Interest of Aditya Virwani in the LLP and has expressed its desire to join the LLP, and Partner-1 and Partner-2 have agreed to admit Partner-3 as a partner to this LLP on the terms and conditions contained herein to which Partner-3 has agreed. Following the transfer of the Capital / Partnership Interest of Aditya Virwani in the LLP to Partner-3, Aditya Virwani has resigned as a partner of the LLP and all references to Aditya Virwani as a partner of the LLP shall be removed from this Restated LLP Agreement.

4. LLP

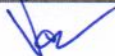
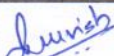
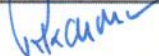
4.1 Capital Contribution

- 4.1.1 The Partners acknowledge that the LLP has been duly and validly incorporated and established and the Capital / Partnership Interest of the LLP prior to this Restated LLP Agreement is as per the table below:

Sr. No.	Name of Partner	Capital contributed	Percentage of Capital contributed
1.	Partner-1	INR 1,59,59,00,000	94.9940%
2.	Aditya Virwani	INR 1,00,000	0.0060%
3.	Partner-2	INR 8,40,00,000	5.0000%

- 4.1.2 Pursuant to the transfer of Capital / Partnership Interest by Aditya Virwani to Partner-3, the Capital / Partnership Interest of the LLP on the execution of this Restated LLP Agreement is Rs. 168,00,00,000 contributed as per the table below:

Sr. No.	Name of Partner	Capital contributed	Percentage of Capital contributed
1.	Partner-1	INR 1,59,59,00,000	94.9940%

Partner 1	Partner 2	Partner 3	Aditya Virwani	LLP
				

2.	Partner-2	INR 8,40,00,000	5.0000%
3.	Partner-3	INR 1,00,000	0.0060%

4.2 Registered office

The Partners acknowledge and agree that the LLP shall have its registered office at 1st Floor, Embassy Point, 150 Infantry Road, Bangalore 560 001, Karnataka, India or at such other place or places, as shall be determined by Partner-1 for the LLP, from time to time.

4.3 Profit & Loss Sharing

4.3.1 It is agreed and understood that the profit & loss sharing ratio amongst the Partners shall be in the same proportion / ratio as of their Capital / Partnership Interest in the LLP; provided however that upon any Additional Partner Investment or funding by third parties being made, the ratio of the Partners in the profits and losses of the LLP shall be altered to reflect the share determined by the LLP to be allocated to such Additional Partner Investment or funding by third parties in accordance with this Restated LLP Agreement.

4.3.2 The LLP shall maintain a register of capital contributed by each Partner and a register or record of each Partner's interest in the profits and losses of the LLP from time to time and shall within 10 (ten) Business Days of the end of every Financial Year and within 10 (ten) days of receipt of any additional capital, intimate all the Partners of the profit and loss sharing proportion / ratio of the Partners.

4.4 Designated Partners

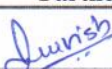
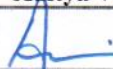
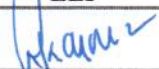
4.4.1 It is agreed between the Partners that at all times the LLP shall have 2 (two) Designated Partners, who shall be authorised to undertake all such acts and do all that is necessary to discharge their duties and roles under the LLP Act.

4.4.2 The Designated Partners of the LLP shall be 1 (one) individual nominated by Partner-1 and Partner-3, respectively.

4.4.3 Partner-1 and Partner-3 shall be authorised and entitled on behalf of the LLP to terminate, remove or replace their Designated Partners at all times.

4.4.4 A Designated Partner may resign as a Designated Partner by giving notice in writing to the LLP. Such notice shall take effect upon the expiry of 30 (thirty) days from the date of receipt of the said notice, save that the notice shall not take effect until at least one new Designated Partner is nominated by Partner-1 or Partner-3, as the case may be, and appointed by the LLP to fill the vacancy being created.

4.4.5 Abhishek Patil, the authorised representative of Partner-1, and Urvish Rambhia, the authorised representative of Partner-3, have been currently appointed as the Designated Partners of the LLP for the purposes of the LLP Act and have been authorised to undertake all such acts and do all that is necessary to discharge their duties and roles under the LLP Act. Only Partner-1 and Partner-3 will have the right to replace the person designated by them as a Designated Partner in terms of this Clause 4.4.5.

Partner 1	Partner 2	Partner 3	Aditya Virwani	LLP
				

- 4.4.6 Partner-1, Partner-3 and the LLP shall indemnify and hold harmless the Designated Partners against any and all liabilities and losses suffered or incurred by them when acting as a Designated Partner, save and except if such liability or loss is due to the gross negligence or wilful misconduct, fraud and/or criminal activities of the Designated Partner.

4.5 **Perpetual Succession**

The LLP shall have perpetual succession and death, retirement or insolvency / liquidation of any partner shall not dissolve the LLP.

5. **FURTHER FUNDING**

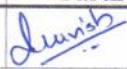
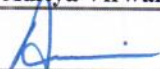
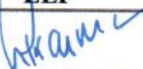
5.1 **Funding requirement**

The Parties agree and acknowledge that the LLP may require further funds for development of the Project and/or for its own operations, including sale and/or other dealings with developments in the Project and/or for acquiring any Additional Lands and for other purposes related to the Project. Each of the Partners agree and undertake that Partner-1 shall be entitled to determine from time to time the further funding that is required for the LLP and the nature of the funding ("**Funding Requirement**").

5.2 **Capital Investment by Partners**

- 5.2.1 Each time when Partner-1 determines the Funding Requirement by additional Capital investment for the LLP, Partner-1 shall inform the Partners of such requirement of additional Capital investment ("**Capital Call**") by issuing a notice to the Partners for the same ("**Capital Call Notice**"). Such Capital Call Notice shall specify (a) the aggregate amount of Capital required by the LLP at such time; (b) dilution to the profit and loss sharing proportion / ratio of the LLP which such additional Capital shall cause in accordance with this Restated LLP Agreement; and (c) the proportionate amount of share of additional Capital which may be infused by each Partner.

- 5.2.2 On such Capital Call being made by Partner-1 by issuing a Capital Call Notice, Partner-2 at its discretion can choose to make a contribution to such additional Capital investment up to its proportionate share as identified in the Capital Call Notice. On Partner-2 deciding to make contribution for additional Capital investment, it shall inform Partner-1 in writing ("**Capital Confirmation Notice**") about its intent to make such further investment, within 7 (seven) days of the receipt of such Capital Call Notice. In the event Partner-2 determines to participate in such additional Capital investment by issuing the Capital Confirmation Notice, it shall intimate in such Capital Confirmation Notice the amount of monies it proposes to invest which shall not be higher than its proportionate share of additional Capital as identified in the Capital Call Notice. All amounts to be paid toward the additional Capital investment shall be done on the date Partner-1 has informed as to the contribution to be made ("**Due Date**") which date shall not be earlier than the date which is 30 (thirty) days from the date of the Capital Call Notice and the contribution by Partner-2 shall be simultaneously with Partner-1's additional Capital. In the event Partner-2 does not make the committed additional Capital investment by the Due Date intimated by Partner-1 or does not issue a Capital Confirmation Notice, Partner-1 or any other person as agreed by Partner-1 shall be entitled to make such additional Capital investment in the LLP. Failure by the Partner-2 to infuse the entirety of its share of additional Capital as specified in the Capital Call Notice would result in its share of profit and loss being diluted to the extent of investment not made on the basis of the Fair Market Value of the LLP as specified in the Capital Call Notice.

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- 5.2.3 Partner-1 shall be entitled to make its share of the Capital Call made by the LLP in terms of the Capital Call Notice without there being any need for it to issue a Capital Confirmation Notice and it may do so either directly or through any other person as deemed fit by it.

(Investment made by the Partners in the LLP in accordance with clauses 5.2.1 and 5.2.2 above shall be refereed herein as "**Additional Partner Investment**").

5.3 Adjustment and Capital Withdrawal

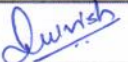
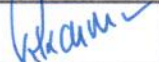
- 5.3.1 Following receipt of the Additional Partner Investment each time, the profit & loss sharing ratio of the Partners shall stand altered to reflect the effect of such additional Capital as provided for in the Capital Call Notice. It is clarified that following any additional Capital being infused in the LLP, the profit and loss sharing ratio may not be in proportion to each Partner's share of Capital of the LLP.
- 5.3.2 The initial Capital contribution and the Additional Partner Investment may be withdrawn from time to time from the LLP to such extent and in such manner that Partner-1 determines.

5.4 Debt funding

Notwithstanding the provisions of this Clause 5, Partner-1 is entitled to determine at all times that all or any part of the Funding Requirement may be obtained by the LLP through loans from third parties, including banks and financial institutions or by raising of debentures and/or bonds by the LLP. The LLP may for such loans, debentures and/or bonds offer such security as is deemed fit by Partner-1, including mortgage of the Project Lands and all benefits, rights thereto and hypothecation of receivables of the LLP. In the event Partner-1 provides any support/guarantees/security to the lenders, then the LLP shall repay all costs and expenses incurred by Partner-1 in this regard and keep Partner-1 fully indemnified against all losses, liabilities and damages emergent from the same. For such debt funding, Partner-2 shall not be required to give any guarantee or assurance as to make it liable for such debt of the LLP, however, whenever required to grant any kind of confirmation or no objection for the LLP to take such debt, Partner-2 shall issue the same without any delay or demur.

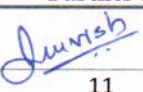
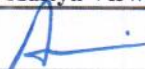
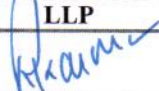
6. LLP MANAGEMENT AND OPERATION

- 6.1 The Parties agree and acknowledge that Partner-2 is only a minority investor and does not have any operating rights in the LLP or the decision in the governance of the LLP and accordingly, Partner-2, shall not be liable for any criminal liability which may be imposed on the LLP on account of the actions of the LLP. All decisions of and regarding the LLP (including as provided in Clause 6 herein and in Schedule-II herein), shall be undertaken by Partner-1 alone. It is expressly agreed that there shall be no requirement of conducting meetings for decision making of the LLP or related requirements such as minimum quorum etc. All such decisions including those taken by Partner-1 in terms of the authority granted to Partner-1 in terms of Schedule-II to act for the LLP shall be recorded within 30 (thirty) days of taking such decisions and such records shall be kept and maintained at the registered office of the LLP.
- 6.2 Partner-1 shall be entitled to take decisions for the LLP from time to time to allocate such of the profits of the LLP as withdrawable by the Partners from such allocated profits, their share of such profits as per their respective interest in the profits and loss of the LLP. Each Partner recognizes that there is no obligation on the part of the LLP or the other Partners to allocate any profits for distribution or withdrawal by the Partners and amongst various reasons, the

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allocation of profits for withdrawal may not be made: (a) if the LLP is restricted or unable to pay on account of any covenant binding on it including loan arrangements; (b) considering the fund requirements for the LLP; or (c) to address any future / potential claims which may arise against the LLP. Each Partner's share in any allocated profits for distribution / withdrawal shall be as per their interest in the profit sharing ratio of the LLP.

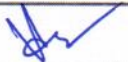
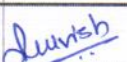
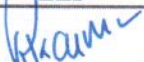
- 6.3 Partner-1 shall be entitled to take decisions for the LLP from time to time to merge or amalgamate the LLP with any other person or otherwise restructure itself, including converting to any other form of business organisation, including a company. Provided that in the converted structure closely reflects the equity interest of Partner-2 in terms of its capital account as on the date of such merger or amalgamation with any other person or restructuring, including converting to any other form of business organisation, including a company. If the LLP converts into a company or any other form of business organisation, then the ownership and decision making rights and other terms of this Restated LLP Agreement shall be as closely reflected in the constitutional documents or any agreements between the Parties as is possible.
- 6.4 Partner-1 shall, at the cost and expense of the LLP, be entitled to and shall (on behalf of the LLP) undertake all acts and deeds for the LLP including as provided in Schedule-II herein and make all decision pertaining to the same.
- 6.5 Notwithstanding anything contained in this Restated LLP Agreement, it is hereby clarified that Partner-1 may exercise the rights conferred on it under this Restated LLP Agreement in respect of the matters listed in Schedule-II, either by itself or through any Affiliates, delegates or nominees designated by Partner-1.
- 6.6 At its discretion, Partner-1 may require that any part or whole of any activities and/or support provided/to be provided by Partner-1 to the LLP and the Project may be provided by any one or more of its Affiliates.
- 6.7 The accounting year of the LLP shall be from 1st April of the year to 31st March of the subsequent year, or such other period as required by applicable Law and/or otherwise required by Partner-1. The first financial year of the LLP shall be from the date of registration as an LLP to 31st March immediately following the date of the registration.
- 6.8 The LLP shall adopt and follow Indian GAAP or such other accounting standards which as per Law is required to be followed by it and shall make commercially reasonable efforts to maintain suitable systems and procedures in respect of maintaining records and books of accounts to reflect the financial status of the LLP.
- 6.9 Each of the Partners shall cooperate with each other and act in good faith at all times to ensure the development of the Project.
- 6.10 Partner-1 is entitled to take up designing and conceptualizing of the entire Project by engaging structural engineers, consultants, contractors, RCC specialists, and architects and paying their remuneration through the LLP.
- 6.11 Partner-1 shall apply in the name of the LLP, for all approvals pertaining to the Project, including the commencement certificate from all concerned Governmental Authorities, obtaining such approvals, including the commencement certificate and the subsequent occupation certificate and completion certificate for the entire Project.
- 6.12 Partner-1 shall be entitled to prepare, revise, amend and/or modify the plans if required.

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- 6.13 Partner-1 is entitled to take decision as to making applications to the appropriate Governmental Authorities for necessary electrical, telephone, drainage, sewage, water supply or other service connections for the Project and secure execution of all the infrastructural work including levelling of the Project Lands, laying of roads, street lights, water storage facilities, water mains, sewerage system, storm water drains, rain water harvesting, recreation gardens, boundary walls, electrical infrastructure, and all other common areas, facilities and the proposed building(s) as may be required by any order of any Governmental Authority while sanctioning the plans pertaining to the Project and granting of any approvals.
- 6.14 Partner-1 is entitled to take decisions on employing any number of labourers, workmen and all other personnel (skilled and unskilled), entering into agreements/contracts with each contractor, sub-contractor, project management company, architect, consultant, specialist, engineer, labourer, workman, supplier, vendor, employee as may be required for the purpose of development and construction work and also ensuring that they comply with all laws and regulations from time to time in force in that behalf.
- 6.15 Partner-1 is entitled to take decision as to engaging contractors, sub-contractors, project management companies, architects, consultants, specialists, engineers, labourers, workmen, suppliers, vendors, employees, specialists in reinforced cement concrete construction and other professionals for supervising, carrying out and completing the construction work of the Project and all matters connected therewith.

7. OTHER TERMS

- 7.1 The LLP shall comply with its covenants and commitments under the Brand License Agreement at all times.
- 7.2 The Parties agree that subject to Clause 7.3 and the terms of the Brand License Agreement, (a) the Project shall be branded / named as determined solely by Partner-1, with or without the usage of the "Blackstone" brand and related trademarks, provided however as long as Partner-2 is a partner in the LLP, the Project name shall include the "Shail" brand, (b) the logo of Partner-1 and/or any of its Affiliates (whether registered in their names / licensed by them) may be used for the branding and marketing of the Project; and (c) the Project may be described as a part of any other warehousing project being carried out by Partner-1 (and/or its Affiliate). The Parties further agree that Partner-1 may refer to and represent the Project in all common branding of any other warehousing project being carried out by Partner-1 (and/or its Affiliate) at a corporate level in India and internationally and in this respect may use all and any images and representations of the Project or any Unit or any facility or customer as deemed fit by Partner-1. It is agreed between the Parties that any usage of any intellectual property belonging to Partner-1 and/or any of its Affiliates (whether registered in their names / licensed by them) by the LLP or on behalf of the LLP shall not create in favour of the LLP or the Project any permanent right or entitlement in such intellectual property (including any derivative thereof).
- 7.3 Notwithstanding anything contained in this Restated LLP Agreement, it is hereby clarified that a partner's branding right in relation to the Project and/or the LLP, as set out under this Restated LLP Agreement, shall fall away in the event a partner ceases to hold any Capital / Partnership Interest in the LLP.
- 7.4 The term "Shail" has been prefixed to the name of the Project, on the request of Partner-2. The Partner-2 undertakes, represents and warrants as under:

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- (a) There is no restriction on usage of the term "Shail" and it is not a mark/name/brand/trademark/logo or intellectual property of or the proprietary mark/name/brand/trademark/logo owned and controlled by any one;
- (b) The usage of the term 'Shail' shall not in any manner infringe on any person's rights (including intellectual property rights) or privileges.

(i) Partner-2 shall ensure that all relevant persons and cause all person to execute appropriate confirmations of having no objection to such usage of the term "Shail"; (ii) Partner-2 agrees that if in the opinion of the LLP or Partner-1, continued usage of the term "Shail" could cause harm to Partner-1 or to the LLP or to any of their Affiliates, whether due to infringement claims or due to reputational issues, then Partner-1 may at its discretion discontinue the usage of the term "Shail" by the LLP; (iii) if Partner-2 is not a partner of the LLP, then Partner-1 may at its discretion discontinue the usage of the term "Shail" by the LLP; (iv) following the undertaking of a REIT, InvIT or an IPO, Partner-1 may at its discretion discontinue the usage of the term "Shail" by the LLP; and (v) Partner-2 shall indemnify the other Parties hereof for all losses suffered by them on account of usage of the term "Shail".

7.5 Each of the Parties undertakes to the other that:

- (a) They or their respective directors, officers, agents, representatives or employees shall not make any payments, directly or indirectly, to or for the use or benefit of any public official, or to any other person either for an advance or reimbursement, if it knows or has reason to know that any part of such payment will be directly or indirectly given or paid by such other person, to any public official, or to any other person or entity to obtain or keep business or to secure some other improper business advantage;
- (b) They shall conduct their respective businesses in compliance, in all respects, with the Anti-Corruption Laws.

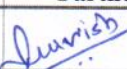
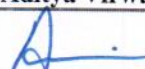
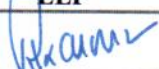
7.6 The Parties agree that the LLP shall indemnify and hold harmless the Partners entitled to undertake actions on behalf of or for the benefit of the LLP in terms of this Restated LLP Agreement, each officer or employee or consultant of the LLP (each of such persons hereinafter referred to as the "**Specifically Protected Persons**") from any liability in relation to the Project and none of such persons shall at any-time be considered as a promoter/sponsor of the LLP or the Project unless consented to by them.

7.7 Partner-2 warrants that it is aware of regulations and sanctions administered and enforced by the U.S. Treasury Department's Office of Foreign Assets Control ("**OFAC**") against the following countries: Belarus, Burma, Cote D'Ivoire, Cuba, Democratic Republic of Congo, Iran, Iraq, Libya, North Korea, Somalia, Sudan, Syria, Zimbabwe; and neither it nor any of its Affiliates are currently transacting business with persons in those countries.

7.8 Other than as specifically provided under this Restated LLP Agreement, Partner-2 shall not be entitled to do any act or deed for or on behalf of the LLP.

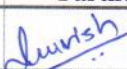
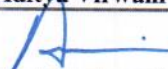
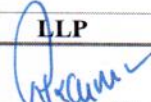
8. TRANSFERS OF CAPITAL AND OTHER PARTNERSHIP INTEREST

8.1 Partner-2 shall not Transfer its Capital / Partnership Interest in the LLP to any person for a period of 5 (five) years from 5 March 2018 or the occurrence of a REIT or InvIT, whichever is earlier ("**Lock-in Period**"), save and except (a) with the consent in writing of Partner-1; (b) in exercise of their Tag Along Rights as prescribed in Clause 8.4; or (c) in discharge of its

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obligations under Clause 8.5 and elsewhere under this Restated LLP Agreement. Any Transfer by Partner-2 after the Lock-in Period shall be undertaken only as specifically provided in this Clause 8. Any Transfer by Partner-2 not in conformity with this Clause 8.1 shall be void *ab-initio* and the transferee shall have no rights in the LLP and/or any Capital / Partnership Interest transferred to it and such transferred Capital / Partnership Interest of the LLP shall be deemed to be suspended till the default is rectified to the LLP's satisfaction. Partner-2 agrees and acknowledges that any transfer of any Capital / Partnership Interest or management in itself by its shareholders and/or promoters to other persons shall be deemed to be a violation of the restriction in this clause, provided that: (a) any transfer of capital in Partner-2 by the shareholders of Partner-2 to a relative (as defined under Income Tax Act, 1961) would not be restricted by virtue of this clause as long as Vishali Jain continues to be in Control of Partner-2; and (b) transfer of capital by way of testamentary or intestate succession would not be restricted by virtue of this Clause 8.1.

- 8.2 If after the Lock-in Period, Partner-2 (the "**Transferor**") is interested in Transferring its Capital and its interest in the LLP, which shall be all of its Capital and interest in the LLP and not any part (referred to as "**VJ Transfer Assets**"), the Transferor shall intimate in writing ("**Transfer Notice**") to Partner-1 of its intent to Transfer its Capital and its interest in the LLP along with details of the proposed transferee ("**Partner-2 Transferee**"), the price at which such VJ Transfer Assets are proposed to be Transferred and the agreed form of the various documents finalised for such Transfer ("**Binding VJ Transfer Documents**"). Partner-2 agrees that all Transfer of any VJ Transfer Assets would be subject to Partner-1's rights ("**Right of First Refusal**") under Clause 8.3 hereof. It is specifically agreed by Partner-2 that notwithstanding anything to the contrary contained or implied by this Clause or under this Restated LLP Agreement generally, it shall not Transfer or attempt to Transfer any VJ Transfer Assets in the LLP or discuss the affairs of the LLP, whether in the context of a Transfer or otherwise, with a person who is a Competitor.
- 8.3 The issuance of a Transfer Notice shall be deemed to have been an offer by the Transferor to Partner-1 to acquire the relevant VJ Transfer Assets proposed to be transferred, from the Transferor at the same price and payment structures as agreed in the Binding VJ Transfer Documents save and except for such changes as are required to make such Transfer compliant under applicable Law. Partner-1 shall, upon receipt of the Binding VJ Transfer Documents, have the right and not the obligation to accept, whether by itself or any Affiliate (the "**ROFR Transferee**") the offer of the Transferor for the VJ Transfer Assets. The ROFR Transferee shall convey its acceptance of the offer for the VJ Transfer Assets to the Transferor within 30 (thirty) days of receipt of the offer. If the ROFR Transferee accepts the relevant offer, then it shall within 30 (thirty) days of acceptance, execute documents similar to the Binding VJ Transfer Documents and consummate the Transfer of the VJ Transfer Assets from the Transferor by paying to the Transferor the consideration in terms of such documents in accordance with the terms of such documents.
- 8.4 If at any time Partner-1 seeks to transfer by sale any or all of its Capital and interest in the profits and assets of the LLP to any person (the relevant assets proposed to be transferred shall be referred to as "**Partner-1 Transfer Assets**") then it shall provide a written notice ("**Tag Sale Notice**") to Partner-2 informing it of such proposed sale along with: (i) details of the Partner-1 Transfer Assets proposed to be sold by Partner-1; (ii) the price at which such Partner-1 Transfer Assets are proposed to be sold to the buyer; (iii) the proposed date on which such sale is proposed to be completed. The right of Partner-2 to tag-along shall not apply for Transfers made to its Affiliates by Partner-1.

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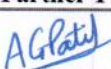
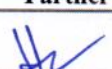
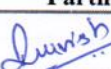
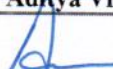
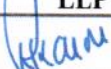
Within 10 (Ten) days of receipt of the Tag Sale Notice by Partner-2, Partner-2 shall inform Partner-1 in writing ("**Tag Exercise Notice**") of whether it wishes to sell and Transfer the same proportion of its Capital and interest in the LLP ("**Tag Capital**") as being sold by Partner-1 to the third party buyer on the terms set out in the Tag Sale Notice ("**Tag Along Right**"). In the event Partner-2 fails to issue the Tag Exercise Notice within the aforementioned time period, then Partner-2 shall be deemed to have waived its Tag Along Right and Partner-1 shall be entitled to proceed with the sale of the Partner-1 Transfer Assets.

Upon receipt of the Tag Exercise Notice, Partner-1 shall arrange for the third party buyer to purchase the Tag Capital directly from Partner-2 simultaneously with the purchase from Partner-1 of the Partner-1 Transfer Assets and for the same consideration for each relevant Partner-1 Transfer Assets as being received by Partner-1. Partner-2 shall execute all reasonable customary documents for transactions of such nature.

Partner-2 shall extend all cooperation requested by Partner-1 to facilitate a due diligence upon the Tag Capital, if so required by the buyer. Additionally, Partner-2 shall: (1) be solely responsible for complying with all restrictions/requirements of applicable Law in relation to the sale and Transfer of the Tag Capital to the third party buyer; (2) ensure that all such approvals and authorizations, if any, required under applicable Law to be obtained prior to the consummation of the sale of the Tag Capital are obtained prior to the proposed date of sale identified in the Tag Sale Notice; and (3) be solely responsible to satisfy all conditions precedent in the relevant documents executed by it for sale of the Tag Capital; (4) be solely responsible to give the representation, assurance and warranties as would be customarily required for the transfer of such Tag Capital. If Partner-2 fails to satisfy the conditions precedent or fails to obtain such approvals and authorisations required under applicable Law on or before the date at which Partner-1 is able to make a sale of the Partner-1 Transfer Assets, then it shall be deemed that Partner-2 has waived its Tag-Along Right. In such an event, Partner-1 shall be entitled to complete the sale and Transfer of the Partner-1 Transfer Assets to the third party buyer.

8.5 Notwithstanding the Tag Along Right of Partner-2, Partner-1 shall have the right ("**Drag Along Right**") to require that Partner-2, at such times that Partner-1 is selling or Transferring any Partner-1 Transfer Assets or upon the occurrence of a REIT or InvIT, transfer to the buyer of the Partner-1 Transfer Assets, in the same proportion of its Capital and interest in the LLP (the "**Drag Capital**") as the Partner-1 Transfer Assets bear to the total Capital and interest held by Partner-1, on the same terms and conditions as the terms on which Partner-1 is selling or Transferring the Partner-1 Transfer Assets; provided that if Partner-1 is vesting Control with the third party buyer, or in case of a REIT or InvIT, then Partner-1 shall be entitled to require that the Drag Capital could be the entire Capital and interest of the Partner-2 in the LLP. The Drag Along Right would be exercised by Partner-1 by issuing a notice ("**Drag Notice**") in writing to Partner-2 specifying (i) details of the Partner-1 Transfer Assets proposed to be sold or Transferred by Partner-1; (ii) the price at which each relevant component of the Partner-1 Transfer Assets are proposed to be sold or Transferred to the buyer; and (iii) the proposed date on which such sale or Transfer is to be completed.

8.6 Upon receipt of the Drag Notice, Partner-2 shall ensure to transfer the relevant Drag Capital to the buyer on the date mentioned in the Drag Notice or any other later or earlier date subsequently informed to it by Partner-1. Partner-2 shall extend all cooperation requested by Partner-1 to facilitate a due diligence upon the Drag Capital, if so required by the buyer. Additionally, Partner-2 shall ensure that it obtains all such approvals and authorizations, if any, required under applicable Law prior to the consummation of the sale of the Drag Capital as are necessary to make such sale of the Drag Capital to the buyer and shall satisfy all conditions

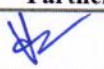
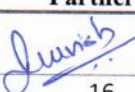
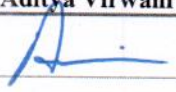
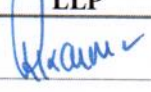
Partner 1	Partner 2	Partner 3	Aditya Virwani	LLP
				

precedent as is necessary and/or agreed with the buyer to make such sale to the buyer of the Drag Capital. If Partner-2 fails to satisfy the conditions precedent or fails to obtain such approvals and authorizations required under applicable Law on or before the date at which Partner-1 requires the Drag Capital to be sold to the buyer, then Partner-2 shall be considered to be in Material P2 Breach of this Restated LLP Agreement and without prejudice to the other consequences of such Material P2 Breach, Partner-2 shall reimburse and indemnify Partner-1 for all liabilities and other losses suffered by it due to the failure of Partner-2 to ensure the sale of the Drag Capital to the buyer.

- 8.7 Partner-2 agrees that if Partner-1 proposes a corporate reorganisation involving the LLP, including a merger with any other entity, or proposes conversion into a company/corporate, then it shall not protest or object to such corporate reorganisation or conversion involving the LLP and hereby gives its irrevocable consent to all such arrangements; all such corporate reorganisation shall be in compliance with Clause 6.3 hereof. Partner-1 may require such cooperation by issuing a notice in writing to Partner-2 and upon issuance of such notice, Partner-2 shall undertake all such acts as is required by Partner-1 within a period of 30 (thirty) days from the date of receipt of the notice. If Partner-2 fails to comply with the requirements of this clause, then Partner-2 shall be considered to be in Material P2 Breach of this Restated LLP Agreement and without prejudice to the other consequences of such Material P2 Breach, it shall reimburse and indemnify Partner-1 and the LLP for all liabilities and other losses suffered by them due to its failure and/or the failure of the proposed corporate reorganisation to consummate.
- 8.8 Partner-2 agrees and acknowledges that if such corporate reorganisation enables a listing and/or a listing independently occurs, the LLP and/or Partner-1 may require its cooperation and Partner-2 agrees and undertakes that to enable such corporate reorganisation enabling a listing and/or an independent listing, it shall provide all support as is required by the LLP and/or Partner-1 including but not limited to undertaking each of the following:
- Offering for sale, including to any anchor investors, such amount of Capital and interest in profit and assets of the LLP as held by it and required by the LLP and/or Partner-1;
 - Agreeing to lock-in of its Capital and interest in profit and assets of the LLP for such period as is necessary under Law or any contractual arrangement agreed to by the LLP;
 - Providing such representations and warranties, certificates or confirmations as is necessary;
 - Termination of the Tag Along Right of Partner-2 or any other right as is deemed necessary by the LLP;

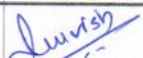
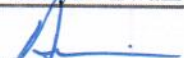
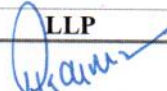
Without prejudice to the aforesaid, Partner-2 hereby gives its irrevocable consent to all such arrangements, including listing, REIT's or InvIT's. Provided that in each of the aforesaid cases, the LLP shall demand for any of the aforesaid actions only if advised as being customary by the LLP's and/or Partner-1's lawyers advising on such corporate reorganisation and/or listing and/or REIT's or InvIT's and or if advised as being reasonable and/or customary by the merchant bankers mandated by the LLP and/or Partner-1 for such corporate reorganisation and/or listing and or REIT's or InvIT's.

If Partner-2 fails to comply with the requirements of this clause then without prejudice to the other consequences of a Material P2 Breach, Partner-2 shall reimburse and indemnify Partner-1 and the LLP for all liabilities and other losses suffered by them due to the failure of the

Partner 1	Partner 2	Partner 3	Aditya Virwani	LLP
				

relevant corporate reorganisation and/or listing or any losses and costs suffered in mitigating the impact of such failure by Partner-2 to comply with the requirements of this clause.

- 8.9 Partner-2 agrees and acknowledges that the LLP or Partner-1 and/or its Affiliates may undertake and/or establish a REIT or InvIT involving directly or indirectly part or whole of the Project. Partner-2 agrees and undertake that to enable such REIT or InvIT, it shall provide all support as is required by the LLP and/or Partner-1 including but not limited to undertaking each of the following:
- (a) Exchanging, as desired by the LLP, all or part of the Capital and/or voting and profit and loss sharing ratio held by Partner-2 in the LLP for units of the REIT or InvIT;
 - (b) Offering for sale such number of units of the REIT or InvIT held by them as is desired by the LLP;
 - (c) Agreeing to lock-in of its units of the REIT or InvIT or any Capital and interest in profits and assets of the LLP for such period as is necessary under Law or any contractual arrangement agreed to by the LLP in connection with the REIT or InvIT;
 - (d) Providing such representations and warranties, certificates or confirmations as is necessary for the REIT or InvIT;
 - (e) Termination of the Tag Along Right of Partner-2 or any other right as is deemed necessary by the LLP to facilitate the REIT or InvIT;
 - (f) Undertaking all such additional acts as is required in connection with the REIT or InvIT.
- 8.10 Each of the Parties agree and undertake that in the event Partner-1 wants to effect an Investment Trust Listing, Partner-2 shall extend full co-operation to the other Parties, to effect such Investment Trust Listing, such that it is in accordance with applicable Law, including any alteration to this Restated LLP Agreement and/or the rights attached to the Capital / Partnership Interest of the LLP, to the extent required under applicable Law, particularly Regulation 18 of the SEBI (Real Estate Investment Trusts) Regulations 2014 in the case of a REIT listing, or Regulation 18 of the SEBI (Infrastructure Investment Trusts) Regulations 2014 in the case of an InvIT listing, or as required by a Governmental Authority, for the successful listing of an Investment Trust. In this regard, Partner-2 hereby specifically agrees that it shall not exercise any right under this Restated LLP Agreement or otherwise, which may prevent the Investment Trust from complying with the Investment Trust Regulations, and that the provisions of the Investment Trust Regulations shall prevail over this Restated LLP Agreement in case of any inconsistency between this Restated LLP Agreement and the obligations cast upon an Investment Trust under the relevant Investment Trust Regulations.
- 8.11 Provided that in case of clauses 8.9 and 8.10, the LLP shall demand for any of the aforesaid actions only if advised as being reasonable and/or customary by the LLP's and/or Partner-1's lawyers advising on the REIT or InvIT and/or if advised as being reasonable and/or customary by the merchant bankers mandated by the LLP and/or Partner-1 for the REIT or InvIT.
- 8.12 If Partner-2 fails to comply with the requirements of clause 8.9 and 8.10, then without prejudice to the other consequences of such Material P2 Breach, Partner-2 shall reimburse and indemnify Partner-1 and the LLP for all liabilities and other losses suffered by them due to the failure of

Partner 1	Partner 2	Partner 3	Aditya Virwani	LLP
				

the REIT or InvIT or any losses and costs suffered in mitigating the impact of such failure by Partner-2 to comply with the requirements of this clause.

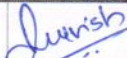
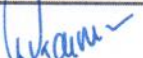
- 8.13 Partner-2 agrees and acknowledges that if Partner-1 undertakes a listing of its equity shares or any other security at any time on a stock exchange in India or abroad, whether through an initial public offering or by way of an offer for sale or any combination thereof ("**Partner-1 Listing**"), then Partner-2 shall, to enable such Partner-1 Listing, provide all support as is required by Partner-1 including but not limited to undertaking agreeing to any amendment of this Restated LLP Agreement which does not materially impact its rights considered on an aggregate basis.
- 8.14 Any person who receives any Capital / Partnership Interest in the LLP held by Partner-2 whether through succession on death or liquidation, including any provisional holder of such Capital / Partnership Interest in the LLP shall execute a deed of adherence undertaking to be fully bound by the rights, duties, privileges and obligations of the original holder of the Capital / Partnership Interest in the profit and assets of the LLP.

9. CALL OPTION:

- 9.1 If a Material P2 Breach has occurred, and such breach has not been cured within 7 (seven) Business Days of the occurrence of such breach, then Partner-2 shall be deemed to have retired from the LLP without affecting any of its obligations and/or duties prior to such deemed retirement. On occurrence of a deemed retirement of Partner-2 in terms of this clause, Partner-1 shall be entitled to acquire the share of Partner-2 in the LLP at a price which is equal to the Fair Market Value of its Capital and interest in the LLP. It is agreed by Partner-2 that 10% of such Fair Market Value shall be paid by Partner-2 to Partner-1 as liquidated damages for the occurrence of the Material P2 Breach. Partner-2 agrees that such amount is a genuine pre-estimate of expenses and losses incurred by Partner-1 and the LLP in relation to the occurrence of the Material P2 Breach. The Parties agree that such amount is not in the nature of and shall not be considered as a penalty.
- 9.2 On and from the date of the deemed retirement of Partner-2 as per the above Clause 9.1, Partner-2 shall not be entitled to receive any share of the profit of the LLP.
- 9.3 Partner-2 shall come forward to execute the deed of retirement cum reconstitution of the LLP against the receipt by it of the Fair Market Value of its Capital and interest in the LLP in terms of Clause 9.1, forthwith upon being called upon and without any demur or protest, failing which, Partner-1 as the attorney of Partner-2 shall execute such deed of retirement cum reconstitution.
- 9.4 While retiring from the LLP, Partner-2 shall be deemed to have represented and warranted to Partner-1, that it has not created any Encumbrance of its Capital and interest in the LLP.
- 9.5 Partner-2 appoints and constitutes Partner-1, as its attorney to do all that is required for compliance of the obligations of Partner-2 of retiring from the LLP in terms of this Clause 9 and it shall and agrees to ratify all acts undertaken by such constituted attorney to give effect to its retirement from the LLP in terms of this Clause 9.

10. CONFIDENTIALITY

- 10.1 Subject to this Clause and Clauses 12.2 and 12.3 below, each Party shall keep the terms of the transaction, this Restated LLP Agreement and all sale deeds and other arrangements between them and any information received by it in connection with the transaction or in relation to the

Partner 1	Partner 2	Partner 3	Aditya Virwani	LLP
				

business and operations of the LLP and/or the Project ("**Confidential Information**") confidential. Each of the Parties may disclose the Confidential Information to their respective officers, employees, agents and advisors, including auditors and lawyers, on a need-to-know basis but shall ensure that all such recipients keep such information disclosed to them as confidential.

10.2 Partner-1 may however disclose Confidential Information:

- (a) to each of its and its Affiliate's investors or proposed investors and their advisors and representatives, including bankers and lawyers, including for the purpose of raising investment, whether as equity or debt, by itself and/or any of its Affiliates, including in any public offering or private placement or REIT or InvIT, etc;
- (b) to any stock-exchanges or other securities trading bodies;
- (c) in any marketing or advertising or promotional or pitch material, including group level materials and whether they are trade related or investment related or for any other purpose whatsoever.

10.3 Nothing in this Clause shall restrict any Party or their Affiliates or their investors from disclosing Confidential Information to any Governmental Authority in terms of applicable Law.

11. TERMINATION

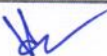
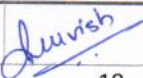
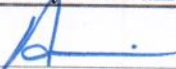
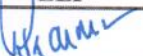
11.1 This Restated LLP Agreement shall terminate and save for clauses which survive termination, shall have no force or effect on a person once such person and its Affiliate ("**First Party**") ceases to hold any Capital / Partnership Interest in the LLP and on such date, such First Party's right and interest in the LLP and vis-à-vis the other Parties and the LLP's and the other Party's obligations against the First Party shall terminate, save and except for any clauses which survive termination.

11.2 Upon any termination of this Restated LLP Agreement, all clauses which by their very nature should survive termination, including all indemnity obligations, confidentiality obligations and governing law and dispute resolution related clauses, shall survive the termination of this Restated LLP Agreement.

12. MISCELLANEOUS

12.1 BENEFIT OF THE RESTATED LLP AGREEMENT

- (a) This Restated LLP Agreement and the respective rights and obligations of the Parties under this Restated LLP Agreement shall ensure to the benefit of and be binding on their respective successors, heirs, executors, administrators and permitted assigns, as the case may be.
- (b) Partner-1 and Partner-3 shall be entitled to assign their respective rights, benefits and obligations under this Restated LLP Agreement, in part or in whole, to any transferee of their shares except when specifically restricted under this Restated LLP Agreement. Partner-2 shall not assign or Transfer any of its rights, benefits and obligations under this Restated LLP Agreement, except in the manner as provided in this Restated LLP Agreement. The Parties acknowledge that Partner-2 may be reorganised/converted into a limited liability partnership and that the restriction under this clause shall not affect

Partner 1	Partner 2	Partner 3	Aditya Virwani	LLP
				

such conversion provided the Control of such converted / reorganised entity shall always be with Vishali Jain and provided further that the converted / reorganised entity shall remain bound by the terms of this Restated LLP Agreement in the same manner as the original entity.

- (c) Transfer by sale or otherwise by any or all of the Capital / Partnership Interest in the LLP to any person by a Partner in accordance with this Restated LLP Agreement shall also deemed to proportionately cease its Partnership Interest in the LLP.
- (d) Partner-2 has been represented herein by its authorised signatory Vishali Jain, duly authorised *vide* board resolution dated 7 October 2021.

12.2 NOTICES

Except as may be otherwise provided herein, all notices, requests, waivers and other communications made pursuant to this Restated LLP Agreement shall be in writing and signed by or on behalf of the Party giving it. Such notice shall be served by sending it by email to the address set forth below or delivering by hand, mail or courier to the address set forth below. In each case, it shall be marked for the attention of the relevant Party set forth below. Any notice so served shall be deemed to have been duly given (a) in case of delivery by hand, when hand delivered to the other Party; (b) when sent by post, where 7 (seven) Business Days have elapsed after deposit in the post; or (c) when delivered by courier on the 2nd (second) Business Day after deposit with an international overnight delivery service, postage prepaid, with next business-day delivery guaranteed, provided that the sending Party receives a confirmation of delivery from the delivery service provider.

If to the LLP or Partner-1

Address BREP Asia II EIP Holding (NQ) Pte Ltd, 77 Robinson Road, #13-00 Robinson 77, Singapore 068896

E-mail realestateasianotices@Blackstone.com

Attention The Directors

With a copy to (which shall not constitute a notice under this Clause 12.2) to:

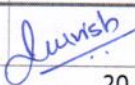
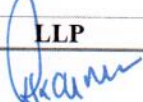
Address: Khaitan & Co, 10th Floor, Tower 1, One World Centre, Senapati Bapat Marg, Lower Parel Mumbai 400 013

Attention: Aakash Choubey

Email: aakash.choubey@khaitanco.com

With a copy to (which shall not constitute a notice under this Clause 12.2) to:

Address: Simpson Thacher & Bartlett, ICBC Tower – 35th Floor, 3 Garden Road, Central, Hong Kong

Partner 1	Partner 2	Partner 3	Aditya Virwani	LLP
				

Attention Anthony D. King

Email aking@stblaw.com

With a copy (which shall not constitute notice under this Clause 12.2) to:

Address: The Blackstone Group (HK) Limited, Suite 901, 9th Floor, Two International Finance Centre, 8 Finance Street, Central Hong Kong

Attention: Richard Blair, Asia Pacific General Counsel

Email richard.blair@blackstone.com

If to Partner-2

Address 8082, Pocket A, Sector C, Vasant Kunj, New Delhi 110070, India

E-mail vishalijain@hotmail.com

Attention Vishali Jain

If to Partner-3

Address BREP Asia II EIP Holding (NQ) Pte Ltd, 77 Robinson Road, #13-00 Robinson 77, Singapore 068896

E-mail realestateasianotices@Blackstone.com

Attention The Directors

With a copy to (which shall not constitute a notice under this Clause 12.2) to:

Address: Khaitan & Co, 10th Floor, Tower 1, One World Centre, Senapati Bapat Marg, Lower Parel Mumbai 400 013

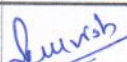
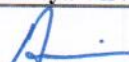
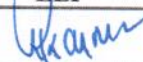
Attention: Aakash Choubey

Email: aakash.choubey@khaitanco.com

With a copy to (which shall not constitute a notice under this Clause 12.2) to:

Address: Simpson Thacher & Bartlett, ICBC Tower – 35th Floor, 3 Garden Road, Central, Hong Kong

Attention Anthony D. King

Partner 1	Partner 2	Partner 3	Aditya Virwani	LLP
				

Email aking@stblaw.com

With a copy (which shall not constitute notice under this Clause 12.2) to:

Address: The Blackstone Group (HK) Limited, Suite 901, 9th
Floor, Two International Finance Centre, 8 Finance
Street, Central Hong Kong

Attention: Richard Blair, Asia Pacific General Counsel

Email richard.blair@blackstone.com

12.3 PARTIAL INVALIDITY

The illegality, invalidity or unenforceability of any provision of this Restated LLP Agreement shall not affect the legality, validity or enforceability of the other provisions hereof.

12.4 FURTHER ACTS

Each of the Parties undertakes to execute, do and take all such steps as may be in their respective powers to execute, do and take or procure to be executed, taken or done and to execute all such further documents, agreements and deeds and do all further acts, deeds, matters and things as may be required to give effect to the provisions of this Restated LLP Agreement.

12.5 VARIATION

No variation or amendment of this Restated LLP Agreement shall be valid and binding unless such variation or amendment is recorded in a written document executed amongst the Parties.

12.6 SUPERSEDE

The LLP Agreement stands modified to the extent of the terms agreed between the Partners and any conflict of any of the terms contained herein and the terms contained in the LLP Agreement, the terms herein to that extent would supersede the term of the LLP Agreement.

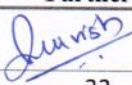
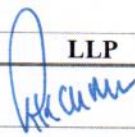
12.7 COUNTERPARTS

This Restated LLP Agreement shall be executed in several counterparts each of which shall constitute the original but all of which when taken together shall constitute one and the same Restated LLP Agreement.

12.8 INDEPENDENCE OF THE PARTIES WITH RESPECT OF EACH OTHER AND OF THE LLP

Each Partner is and shall remain an independent Party and none of the Partners or any of their respective affiliates shall be considered an agent of the other.

12.9 COSTS

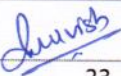
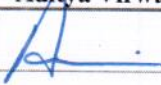
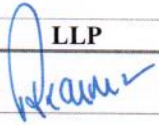
Partner 1	Partner 2	Partner 3	Aditya Virwani	LLP
				

All costs in relation to the stamp duty payable on this Restated LLP Agreement shall be borne by the LLP. All costs for the negotiation and finalisation of this Restated LLP Agreement as incurred by the respective Parties shall be borne solely by such Party.

12.10 GOVERNING LAW AND DISPUTE RESOLUTION

- (a) This Restated LLP Agreement shall be governed by Indian Law.
- (b) If any dispute arises under this Restated LLP Agreement, the Parties shall endeavour to resolve the same by involving senior management of the relevant disputing Parties but if the dispute is not resolved within 30 (thirty) days of the first claimant raising the issue, then the relevant dispute shall be settled by arbitration in Mumbai, Maharashtra, India by an arbitration panel of 3 (three) arbitrators. One arbitrator each shall be appointed by Partner-1 and Partner-2 and the two arbitrators so appointed shall appoint the 3rd (third) arbitrator who shall be the chairman of the arbitral tribunal. The arbitration shall be conducted in English and shall be referred to and finally resolved by arbitration administered by the Mumbai Centre for International Arbitration in accordance with the arbitration rules of the Mumbai Centre for International Arbitration for the time being in force, which rules are deemed to be incorporated by reference in this Clause 12.10.
- (c) Subject to Clause 12.10(b) above, all disputes shall be subject to the non-exclusive jurisdiction of the courts and tribunals in Mumbai, Maharashtra, India.

[Following this page are the signature pages]

Partner 1	Partner 2	Partner 3	Aditya Virwani	LLP
				

IN WITNESS WHEREOF, the Parties have executed this Restated LLP Agreement on the day and date first hereinabove mentioned.

SIGNED AND DELIVERED ON BEHALF OF

EMBASSY INDUSTRIAL PARKS PRIVATE LIMITED



Name: Abhishek Patil

Designation: Authorised Signatory

SIGNED AND DELIVERED ON BEHALF OF

BAGUR LOGISTICS PARK PRIVATE LIMITED



Name: Urvish Rambhia

Designation: Authorised Signatory

SIGNED AND DELIVERED BY

ADITYA VIRWANI



SIGNED AND DELIVERED ON BEHALF OF

FARUKHNAGAR LOGISTICS PARKS LLP

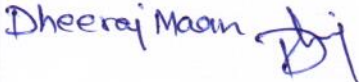
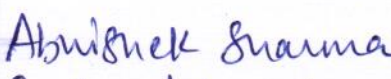


Name: Rajesh Kaimal

Designation: Authorised Signatory

In the presence of

Witness:

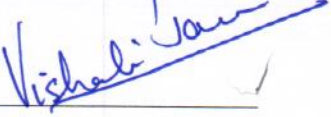
1. Name: 
Title: _____
2. Name: 
Title: 
Senior Manager

Signature Page to the Amended and Restated LLP Agreement dated 8 October 2021 executed by and amongst Embassy Industrial Parks Private Limited, Shail Agro Industries Private Limited, Bagur Logistics Park Private Limited, Aditya Virwani and Farukhnagar Logistics Parks LLP

IN WITNESS WHEREOF, the Parties have executed this Restated LLP Agreement on the day and date first hereinabove mentioned.

SIGNED AND DELIVERED ON BEHALF OF

SHAIL AGRO INDUSTRIES PRIVATE LIMITED



Name: Vishali Jain

Designation: Authorised Signatory

In the presence of:

Witness

1. Name: Dheeraj Maan
Title: Consultant
2. Name: Abhinav Sharma
Title: Senior Manager

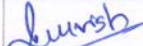


SCHEDULE - I
DESCRIPTION OF PROJECT LANDS

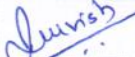
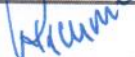
Description of freehold Project Lands in Farukhnagar

Freehold non-agricultural land admeasuring 861 Kanal 9 Marla i.e. 107.68125 acres in Village Farukhnagar, Hadbast No. 35, Tehsil Farukhnagar, District; Gurugram, Haryana and Village: Khalikpur, Hadbast No. 81, Tehsil- Badli, District-Jhajjar, Haryana

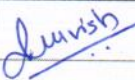
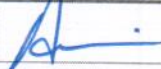
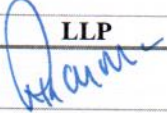
Village	Rectangle No.	Khasra No.	Area	
			Kanal	Marla
Village Farukhnagar, Hadbast No. 35, Tehsil Farukhnagar, District; Gurugram, Haryana	23	7	5	2
	23	8	8	0
	23	9	8	0
	23	12	8	0
	23	13	8	0
	23	14	4	18
	23	17	4	12
	23	18	8	0
	23	19	8	0
	23	20	8	0
	23	21/2	7	4
	23	22	8	0
	23	23	8	0
	23	24	3	10
	12	6	8	0
	12	7	8	0
	12	8	8	0
	7	22/2	1	7
	7	23/2	1	7
	7	24/2	0	14
	13	2/2	3	16
	13	4	8	0
	13	3	8	0
	13	5	8	0
	13	6	8	0
	13	7	8	0
	13	8	8	0
	13	9	8	0

Partner 1	Partner 2	Partner 3	Aditya Virwani	LLP
				

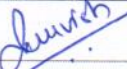
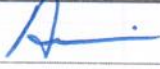
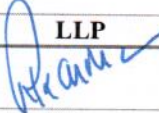
Village	Rectangle No.	Khasra No.	Area	
			Kanal	Marla
	13	10	8	0
	23	1	8	0
	23	2	8	0
	23	3	8	0
	23	4	5	4
	23	10	8	0
	23	11/1	1	16
	12	13	8	0
	12	14	8	0
	12	15	8	0
	12	16/1	7	2
	12	17/1	7	6
	12	18/1	7	7
	13	11	8	0
	13	12	8	0
	13	13/1	6	13
	13	14/1	6	13
	13	15/1	7	12
	13	16/1	5	14
	13	19/1	6	16
	13	20/1	6	19
	23	11/2	6	4
	12	3	8	0
	12	4	8	0
	12	5	8	0
	13	1	8	0
	13	2/1	4	4
	12	22/2	1	9
	12	22/1	5	11
	15	2/1	2	12
	11	14/2	4	8
	11	15/2	4	11
	11	16	8	0
	11	17	8	16
	11	24	10	4
	11	25/1	4	0
	11	25/2	4	0

Partner 1	Partner 2	Partner 3	Aditya Virwani	LLP
				

Village	Rectangle No.	Khasra No.	Area	
			Kanal	Marla
	12	11/2	4	11
	12	12/2	4	0
	12	19	7	0
	12	20	8	0
	12	21	8	0
	7	3/2	5	16
	7	4	6	0
	7	1	8	0
	7	2	8	0
	7	3/1	2	4
	7	7	5	6
	7	8/1	5	18
	8	5	8	0
	16	3	3	12
	16	4	8	0
	16	5	8	0
	16	8	4	18
	16	7	8	0
	16	6/1	7	18
	16	13	5	0
	16	14	8	0
	16	15/1	6	16
	16	16/1/2	1	10
	16	17/1	1	16
	16	18/1/1	1	1
	15	1	8	0
	15	2/2	4	8
	15	10/1	7	7
	15	9/1	6	4
	7	8/2	2	2
	7	9	8	0
	7	10	8	0
	7	11	8	0
	7	12	8	0
	7	13	8	0

Partner 1	Partner 2	Partner 3	Aditya Virwani	LLP
				

Village	Rectangle No.	Khasra No.	Area	
			Kanal	Marla
	7	14	5	4
	7	17	5	6
	7	18	8	0
	7	19	8	0
	7	20	8	0
	8	6	8	0
	8	23/1/2	0	8
	8	24/1	0	9
	8	25/1	0	9
	7	21/1	0	1
	9	23/2/2	6	18
	9	24/2/2	6	18
	9	25/2/2	6	18
	8	21/2/2	7	7
	8	22/2/2	7	7
	8	23/2/2	7	11
	8	24/2	7	11
	8	25/2	7	11
	7	21/2	7	19
	7	22/1	6	13
	7	23/1	6	13
	7	24/1	4	11
	8	13/2	6	11
	8	14/2	7	4
	8	15	8	0
	8	16	8	0
	8	18/1	7	8
	8	17	8	0
	5	3/2	3	6
	5	8/1	3	12
	5	13/2	2	18
	5	18/1	2	12
	6	17/1	3	12
	4	22/2	2	10
	5	23/2	3	13
	6	3/2/2	3	12
	6	7/1	3	12
	6	14/2	3	12

Partner 1	Partner 2	Partner 3	Aditya Virwani	LLP
				

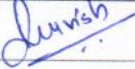
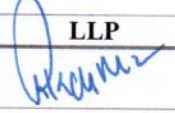
Village	Rectangle No.	Khasra No.	Area	
			Kanal	Marla
	6	24/2	3	12
		Total	852	6
Village: Khalikpur, Hadbast No. 81, Tehsil- Badli, District-Jhajjar, Haryana,	19	13/2/2	0	13
	19	14/2/2/2	3	9
	19	15/2/2	1	1
	19	18/1	3	14
	19	22/2	0	6
		Total	9	3
Grand Total			861	9
			107.68125 acres	

Partner 1	Partner 2	Partner 3	Aditya Virwani	LLP
				

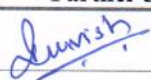
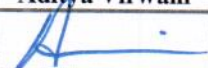
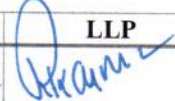
SCHEDULE – II

Acts / deeds and decisions that Partner-1 is authorised by the LLP and can undertake on behalf of the LLP and at the cost and expense of the LLP, shall include the following:

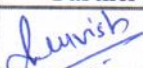
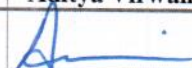
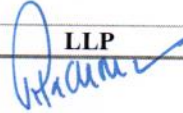
- a. Regulatory, financial, secretarial, taxation and corporate compliance by the LLP, including maintenance of registers, minutes and other records, convening of meetings of the Partners, etc.;
- b. Apply for "change of land use" for part or whole of the Project Lands as determined by Partner-1 which allows for development of warehouses;
- c. Determine and decide the need, requirement and benefit to acquire any Additional Lands, and to deal with negotiate and acquire the same and do all acts and deeds required in respect thereof;
- d. Project management in relation to the development of the Project at the Project Lands including undertaking master-planning, design, engineering, procurement, contracting, overseeing cost and quality control and assurance, development and construction of the Project and other on-site and off-site infrastructure, determining phases for development and/or sales, marketing and public relations of the Project including participation in national and international marketing efforts, like attending conferences, exhibitions, shows and seminars, etc.;
- e. Deal with any Units in the Project and undertake lease management, including identifying a lessee or a user, determining rent, developing, managing and updating sales and business strategy towards leasing / dealing of the Units, generally managing relationships with the lessee including negotiating terms, renewals, termination of a lease, query resolution, compensations, etc.;
- f. Manage the asset (i.e., the Project, including all Units and common areas and incidental infrastructure), including collect rents and other fees, undertake general upkeep of the Project, coordinate utility supplies including water, electricity, security, sewerage, waste, etc, maintain, manage and render such accounts as are required to be delivered to lessees in the Project, obtain insurances and/or indemnities and guarantees, etc;
- g. Funds, receivable and revenue management, including borrowings, refinancing, short term liquidity management and/or investments, discounting of receivables, bank account opening and operations, on-site cash management, etc.;
- h. Vendor (including contractors, brokers, facility managers, marketing agencies, etc) management and relationship, including identification, agreeing to terms of engagement, termination, renewal, determining payment of bonus and/or levy of penalties, etc.;
- i. Government relationships and management including coordinating for approvals, renewals, oversight and management of inspections, disputes, query resolution, etc.;
- j. Investor, lender and/or shareholder management and relationships including coordinating for approvals, oversight and management of inspections, disputes, query resolution, additional fund raising, providing MIS and other reports, etc.;
- k. Employee and consultant management including appointment and/or removal of relevant personnel and professionals, whether on contract basis or employment and whether full time or part time, determine remuneration, including increases or reductions, reimbursements, performance appraisal, payment of bonus and/or levying of penalties, managing disputes and queries, etc;
- l. Appoint and remove executive officers of the LLP as deemed fit by it, including project head, construction head, procurement head, store manager, sales/marketing manager(s), design head,

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- etc. and create such staffing for these officers as deemed fit by Partner-1. The aforesaid executive officers shall have such rights, powers and entitlement as is deemed fit by Partner-1 and may include such powers and entitlements as are typically available to a manager of department or head of department;
- m. Deploy and modify staffing strategy at its discretion;
 - n. Appoint architects, consultants, interior designers, creative/branding/marketing agency, PR agency, building contractors, labour contractors, etc for the purpose of the development, construction, sales, marketing and general management of the Project;
 - o. Design, develop schematics and configuration of the Project, including layout of individual Units, select vendors and materials for the Project;
 - p. Determine pricing and payment strategy for the Units;
 - q. Finalize the forms and templates of various deeds and documents related to the dealing of the Units;
 - r. Open, close, operate and maintain bank accounts, lockers and other accounts;
 - s. Develop websites and any social and other media accounts as deemed fit by Partner-1 for the Project;
 - t. Litigate, prosecute and/or settle disputes;
 - u. To add new partners to the LLP;
 - v. To manage, supervise and administer over the day-to-day affairs of the LLP and to represent the LLP in all matters with Governmental Authorities and agencies, statutory/revenue authorities, municipal authorities, taxation authorities, banks, financial institutions, statutory and/or public sector corporations, companies, bodies corporate, LLPs and all other persons;
 - w. To represent the LLP and act for the LLP before all government, statutory, local and other authorities as also courts and tribunals in regard to or in connection with the Project Lands;
 - x. To have the plans prepared for construction of the Project in the Project Lands;
 - y. To make representations, file affidavits, applications, documents, necessary for the purposes of obtaining permission, clearances, exemptions, sanctions required under any statute for the construction and development on the Project Lands before the Government Authorities, municipal corporations, central government or any appropriate authority under any state or central statute;
 - z. To pay all rates/taxes/cesses in regard to the Project Lands as also the charges for electricity/water consumed and pay all deposits/ charges/ fees/ contributions and other levies required for obtaining licences/ sanctions/ clearances/permissions and to obtain receipts therefore;
 - aa. To apply for and obtain commencement certificate, completion/occupancy certificates and other permissions, required for construction, completion and occupation of any building/s in the Project Lands;
 - bb. To appoint accountant/s for the LLP;
 - cc. To apply for and obtain necessary clearances, permissions, consents required for development of the Project Lands;
 - dd. To apply for and obtain from the corporation, town municipal council/s and other concerned Authorities, National Airport Authority of India as well as International Airport Authority of

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- India, Department of Telecommunication, Traffic Department, Lift Inspectorate, Electric Supply Company, Water Supply and Sewerage Board, Urban Arts Commission, Fire Force Department, or any statutory authority, state or central government) that is required for sanctions, licences, consents /permissions /no objection certificates/commencement certificates/occupancy certificates/amendments/ modifications, for such construction of buildings in the Project Lands and to apply for and obtain electrical, water and sanitary connections, and in that behalf, to sign and execute all applications, affidavits, declarations, indemnities, plans and other documents;
- ee. To construct buildings, structures as per the sanctioned plans on the Project Lands;
 - ff. To submit applications, affidavits, statements, returns to the Government of Haryana and/or the authorities under any state or central statute, to obtain necessary clearances, exemptions, sanctions and permissions required under any of the acts for the purpose of sanction of plan and construction on the Project Lands;
 - gg. To apply for and obtain clearance required for the registration of any customer's agreement/s to be executed by the LLP with regards to the Project;
 - hh. To have the development plans drawn and to obtain the approvals for the same from concerned statutory authorities and to sign necessary plans, papers, application forms, affidavits etc., in connection thereof;
 - ii. To represent the LLP before the Special Economic Zones (SEZ) authorities for the permission for notification of the Project and the Project Lands for SEZ under the Special Economic Zones Act, 2005 and its rules and in that regards to file forms, declarations, statement, undertakings etc.;
 - jj. To supervise and monitor the day-to-day operations and to entrust the works of execution of the development of the Project to employees, piece-workers, labour contractors, sub-contractors, etc.;
 - kk. To engage, and/or appoint or retain architects, structural designers and consultants, engineering or structural consultants, legal advisors, advocates, lawyers, auditors, chartered accountants, consultants etc., for the purpose of or in connection with the execution of the Project;
 - ll. To prepare plans to obtain sanctions and licences, permissions, NOCs etc., necessary for the purpose of the execution of the Project;
 - mm. To ensure that the construction to commence as per sanctioned plan on Project Lands and for the said purpose to entrust the work of such construction to such other person or persons as the LLP may deem fit;
 - nn. To ensure adherence adhere to all the statutory provisions during the execution of the Project and or the LLP;
 - oo. To enter into agreement such as lease, license, tenancy, lease deed, tenant agreement licence agreement/ deed for the Units in the Project and to present and admit execution of such documents executed by the LLP for registration before the sub-registrar and complete all the required formality for registration thereof;
 - pp. To execute loans and financial facilities documents for the LLP and also to create security of the Project Lands of any kind and to execute such security documents and also have the same registered by presenting and admitting execution before the concerned sub registrar and complete all the formalities required for such registration and creating security;
 - qq. To rectify any document executed by the LLP and to get the same registered by presenting and admitting the execution of the document and to complete and comply all the formality of the registration;

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- rr. To grant and terminate leases, tenancies, licences, with regard to the Units in the Project Lands;
- ss. To hand over possession of Units in the Project Lands to any of the lessees, licensees or person authorized to occupy the Units;
- tt. To sign such other forms, applications and papers required to lease, licences, tenancy or occupation rights of such constructed area;
- uu. To institute, prosecute and defend all legal, revenue, tax and other proceedings relating to the Project Lands and to settle, withdraw, compromise, compound any suit or proceedings with regard to such proceedings pertaining to the Project, the Project Lands and or the LLP;
- vv. To sign and execute pleadings, applications, petitions, affidavits, declarations, memoranda of appeal, revision and review to be filed before any court, tribunal or authority or arbitration/s with regard the Project Lands, the Project and or the LLP;
- ww. To produce documents and obtain return thereof, to give evidence and to instruct counsel in regard to any proceeding relating to the Project Lands or the Project or the LLP; and
- xx. To decide and finalize the compensation payable by the LLP for marketing consultants/brokers/agents who are to be engaged for the purpose of marketing / leasing of Project.

Partner 1	Partner 2	Partner 3	Aditya Virwani	LLP
